

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PRTR063615: IN RE THE DORIS MACDONALD 1997 REVOCABLE TRUST

06/25/2026 in Department J6

Hearing on Petition for Order Instructing Trustee

The copy of the claim from the State Controller's Office reports that the type of property is "proceeds due beneficiaries." The report to the Office was made by "Athene Annuity and Life Co."

In the Court's view, the right to payment of death benefits, either from an annuity or a life insurance, is an intangible property right. I.e., on the date of death of the annuitant or policy holder, the asset itself is not a cash asset like cash deposited in a bank. (See also Prob. Code, § 8901, subd. (a) [as used in the subdivision, a "cash item" is a check, draft, money order, or similar instrument issued on or before the date of decedent's death that can be immediately converted to cash].) The right to death benefits from an annuity or life insurance is not like cash existing on the date of death, because the death must be reported to the company, which then confirms the right to payment and then issues payment.

Accordingly, the Court will instruct Petitioner that the unclaimed property is not cash to be distributed to Jennifer Lasden and Dennis MacDonald. It is part of the "residue" to be distributed among Nature Conservancy, American Youth Hostels, and the Campfire Council Inland Southern California.